

26SMCV02990 26SMCV02990

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Case Number: 26SMCV02990 Hearing Date: September 22, 2026 Dept: P

Tentative

Ruling

Darien

Daniel v. Government Employees Insurance Co., et al., Case No. 26SMCV02990

Defendants'

Demurrer

Hearing

Date: September 22, 2026

Background

Plaintiff

Darien Daniel, in pro per, sues Defendants Government Employees Insurance Company d/b/a GEICO ("GEICO"); GEICO General Insurance Company; Shane Wheeler, Derek Davis, David Browne, Julee Thach-Tran, and James Turner for fraud, negligent misrepresentation, promissory estoppel, intentional infliction of emotional distress (IIED), intentional interference with prospective economic advantage, and unfair business practices. Plaintiff alleges that GEICO's conduct following a July 21, 2023, car accident caused Plaintiff economic and professional losses. (Complaint, ¶ 3.)

On June 2,

2026, Plaintiff filed the complaint.

On June

12, 2025, the Court found this case not related to case number 25STCV21366.

On July

21, 2026, Defendants filed this demurrer. As of September 17, 2026, the Court has not received any opposition from Plaintiff.

Demurrer

In a

demurrer proceeding, the defects in the complaint must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a

demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

Before

filing a demurrer, parties must meet and confer in person or by phone. (Code Civ. Proc. § 430.41.)

Discussion

Meet

and Confer

Defendants

indicate that Plaintiff failed to respond to their meet and confer

communications. (McDermott Decl., ¶ 2.) The meet and confer requirement is not satisfied, but that is not grounds for overruling the demurrer. (Code Civ. Proc. § 430.41.)

Uncertainty

Defendants

argue that the complaint is uncertain and fails to state a claim against Defendants GEICO General Insurance Company, Shane Wheeler, Derek Davis, David Browne, Julee Thach-Tran, and James Turner because Plaintiff makes no specific allegations about any of these individual defendants.

A demurrer

for uncertainty lies where the pleading is uncertain, including where the pleading is ambiguous or unintelligible. (Code Civ. Proc. § 430.10, subd. (f); Landau v. Salam (1971) 4 Cal.3d 901, 909.) To survive demurrer, a plaintiff must set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source, and extent of his cause of action. (See Semole v. Sansoucie (1972) 28 Cal.App.3d 714, 719.)

Demurrers

for uncertainty are disfavored. (Chen v. Benjamin (2019) 33 Cal.App.5th 811, 822.) Nonetheless, a defendant must have information clear and specific enough to fully comprehend a plaintiff's allegations and respond with appropriate denials and defenses. (See Committee On Children's Television, Inc. v. General Foods Corp., supra, 35 Cal.3d at pp. 211–212.)

Plaintiffs'

complaint does not satisfy the requirements of the Code of Civil Procedure or the Rules of Court and does not put GEICO General Insurance Company or the individual defendants on sufficiently clear notice of the facts on which their claims are based – or, indeed, of the precise nature of their claims.

Accordingly,

Defendants' demurrer to the claims against GEICO General Insurance Company, Shane Wheeler, Derek Davis, David Browne, Julee Thach-Tran, and James Turner is SUSTAINED as uncertain.

Fraud

Defendants

argue that the Complaint's first four allegations against the GEICO are all species of fraud subject to the heightened pleading requirement for fraud claims, and that the complaint fails to plead Plaintiff's reliance on Defendant's actions with sufficient specificity. The Court agrees. Plaintiff's claims for intentional misrepresentation, promissory fraud, fraudulent concealment, and negligent misrepresentation are all types of fraud.[1]

"The

well-known elements of a cause of action for fraud or concealment are: (1) a misrepresentation, which includes a concealment or nondisclosure; (2) knowledge of the falsity of the misrepresentation, i.e., scienter; (3) intent to induce reliance on the misrepresentation; (4) justifiable reliance; and (5) resulting damages." (Cadlo v. Owens-Illinois, Inc. (2004) 125 Cal.App.4th 513, 519-520.)

Plaintiffs

alleging fraud must describe, with particularity, the specific statements defendants made that constituted fraud, or facts defendants omitted that constitute alleged fraud. Pleadings must allege facts as to "how, when, where, to whom, and by what means the representations were tendered." (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73. Accord Wald v. Truspeed Motorcars, LLC (2010) 184 Cal.App.4th 378, 393; Morgan v. AT & T Wireless Services, Inc. (2009) 177 Cal.App.4th 1235, 1262. Cf. also Goldrich v. Natural Y Surgical Specialties, Inc. (1994) 25 Cal.App.4th 772, 783 ["conclusory allegations offer no facts at all and it is impossible to determine what was said or by whom or in what manner."].)

Negligent

misrepresentation occurs when a defendant (1) makes an untrue statement; (2) that defendant believes to be true, (3) without reasonable ground for the belief, (4) with intent to induce Plaintiff's reliance on the representation; (5) plaintiff did rely, and (6) plaintiff was damaged. (Melican v. Regents of Univ. of Cal. (2007) 151 Cal.App.4th 168, 182.)

Plaintiff's

allegations against GEICO are more specific than his allegations against the other defendants but nonetheless does not describe how he relied on Defendant's alleged misrepresentations. Therefore, Plaintiff fails to state a claim for

fraud or negligent misrepresentation.

Defendants'

demurrer to Plaintiff's fraud and negligent misrepresentation claims against GEICO is SUSTAINED.

Promissory

Estoppel

Defendants

argue that Defendant's promissory estoppel claim fails because it does not establish clear and unambiguous promise, reliance, or injury.

A

complaint states a claim for promissory estoppel where it alleges facts showing that a promisor made a promise that it should reasonably expect would induce the promisee's substantial action or forbearance, which does induce such action or forbearance, and injustice can be avoided only by enforcing the promise. (C & K Eng'g Contractors v. Amber Steel Co. (1978) 23 Cal.3d 1, 6; Cotta v. City and County of San Francisco (2007) 157 Cal.App.4th 1550, 1566; Lange v. Tig Ins. Co. (1998) 68 Cal.App.4th 1179, 1185. See also Smith v. City & County of San Francisco (1990) 225 Cal.App.3d 38, 48 [to allege promissory estoppel, pleadings must allege facts demonstrating such reliance on promises, beyond just conclusory allegations of reasonable reliance upon promises].)

The Court

agrees with Defendants. Plaintiff's promissory estoppel claim suffers from the same defect as his fraud claims: he fails to allege reliance with sufficient specificity to state a claim for promissory estoppel.

Defendants'

demurrer to Plaintiff's promissory estoppel claim is SUSTAINED.

Intentional

Infliction of Emotional Distress

Defendants

argue that Plaintiff fails to state a claim for IIED because he does not allege that Defendants' conduct was extreme and outrageous.

To

state a claim for intentional infliction of emotional distress, a complaint must plead facts showing that the defendant committed some extreme and outrageous act intentionally or with reckless disregard of the possibility of causing the plaintiff distress, and actually and proximately caused plaintiff's severe emotional distress. (*Grenier v. Taylor* (2015) 234 Cal.App.4th 471, 486.) Extreme and outrageous conduct is conduct that is so egregious that it is "utterly intolerable in a civilized community." (*Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1266.)

Though Plaintiff

alleges that GEICO acted poorly, his allegations that GEICO knew that Plaintiff was under financial stress and would rely on GEICO's representations are not allegations of extreme and outrageous conduct that is "utterly intolerable." (See Complaint, ¶¶ 106-110.) Absent any case law showing that such allegations can support a claim for IIED, the Court SUSTAINS Defendants' demurrer to Plaintiff's complaint.

Intentional

Interference with Prospective Economic Advantage

Defendants

argue that Plaintiff does not allege that GEICO's actions disrupted any prospective economic relationships because he fails to plead any existing economic relationships.

To state a

claim for intentional interference with prospective economic relationship, a complaint must allege (1) an economic relationship between the plaintiff and a third party; (2) probability of future economic benefit; (3) defendants' knowledge of that relationship; (4) defendant's intentional acts designed to disrupt the relationship; (5) defendant engaged in an independently wrongful act in disrupting the relationship beyond just inducing disruption of economic advantage; (6) actual disruption of the relationship; and (7) economic harm to the plaintiff caused by the acts. (*Roth v. Rhodes* (1994) 25 Cal.App.4th 530, 546 [as to interference with prospective economic advantage, the nature of particular allegations revealed a failure to allege an existing relationship beyond speculative future relations, and judgment on the pleadings was proper].)

Plaintiff's

allegations of economic relationships that Defendants' conduct allegedly disrupted are extremely general: Plaintiff alleges that he had "work contracts, music production, operations/event work, and use of professional tools of trade," but does not describe with whom he had those relationships or how GEICO's conduct disrupted those relationships. Plaintiff does not state a claim for interference with prospective economic advantage.

Defendants'

demurrer to Plaintiff's Intentional Interference with Prospective Economic Advantage claim is SUSTAINED.

Violation

of the UCL

There

are three types of claims under Bus. & Prof. Code § 17200: claims for unlawful business practices, fraudulent business practices, and unfair business practices. Under any theory, the complaint must claim some unlawful, fraudulent, or unfair business practice. (People ex rel. Dept. of Motor Vehicles v. Cars 4 Causes (2006) 139 Cal.App.4th 1006, 1016 ["An 'unlawful' practice requires violation of another statute, and a business practice may be 'unfair' even if not otherwise proscribed by statute as long as the practice is not expressly authorized by law."]; In re Tobacco II Cases (2009) 46 Cal.4th 298, 328 [a claim for fraudulent business practices must allege individualized reliance on specific misrepresentations or false statements]; Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 187 ("Cel-Tech") [unfair conduct is conduct that threatens an incipient violation of an antitrust law or violates the policy or spirit of one of those laws].)

Pursuant

to the Court's analysis of Plaintiff's fraud claims, above, Plaintiff does not allege fraudulent business practices. Plaintiff claims that GEICO's conduct was unlawful because it was fraudulent. Since Plaintiff's complaint does not state a claim for fraud, any claim for unlawful fraudulent conduct likewise fails. Next, Plaintiff alleges that "GEICO's conduct was unfair because it used insurer-side control of funds, information, and communication channels to disadvantage a self-represented claimant after liability had been accepted." (Complaint, ¶ 126.) This allegation is insufficient to describe unfair conduct

under the UCL because it does not describe conduct that threatens a violation of antitrust law. (Cel-Tech, supra, 20 Cal.4th at 187.)

Defendants'

Demurrer to Plaintiff's unfair or unlawful business practices is SUSTAINED.

Leave

to Amend

Though

this motion is unopposed, leave to amend is liberally granted. This is Plaintiff's first complaint, so he may be able to allege sufficient detail to state a claim against Defendants if given leave to amend. Accordingly, the Court is not prepared to find that there is no reasonable possibility that Plaintiff will be able to state a claim in an amended complaint. Therefore, the Court sustains Defendants' demurrer with leave to amend.

Conclusion

Defendants'

Demurrer is SUSTAINED with leave to amend.

[1] It

is not settled law if a claim for negligent misrepresentation is subject to the heightened pleading standard for fraud, but Plaintiff's negligent misrepresentation claim is virtually identical to his fraud claims in this case and similarly fails to describe any kind of reliance. (See dissent, B.L.M. v. Sabo & Deitsch (1997) 55 Cal.App.4th 823, 845.)